

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601238	HUNTER vs GAUSE	MOTION TO STRIKE OR, IN THE ALTERNATIVE, TO TAX COSTS

Tentative Ruling:

DENY

A prevailing party is entitled as a matter of right to recover costs in any action or proceeding. (CCP § 1032(b)) The trial court determines, in its discretion, the prevailing party by comparing the relief sought with that obtained. (*Friends of Spring Street v. Nevada City* (2019) 33 Cal.App.5th 1092.) Here, since changes were needed to comply with the Election Code, and although the changes were minimal, Petitioner is the prevailing party and is entitled to appropriate costs. The costs requested by Petitioner were reasonably necessary to the conduct of the litigation and are therefore proper and allowable. (CCP § 1033.5(c)(2).)

5.

CASE #	CASE NAME	HEARING NAME
CVRI2601238	HUNTER vs GAUSE	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

GRANT Petitioner's motion for attorney's fees under CCP § 1021.5 in the reduced, reasonable sum of \$21,835.

CCP § 1021.5 allows the court to award attorneys' fees to a party in an action that results in the enforcement of an important right affecting a public interest. The court finds that Petitioner here has met the test set forth in *Mandicino v. Maggard* (1989) 210 Cal.App.3d 1413, in vindicating an important right so as to justify an attorney fee award.

The fees sought, however, are excessive. Petitioner's counsel seeks an hourly rate of \$695 per hour. The reasonable hourly rate is that prevailing in the community for similar work. (*PLCM Group, Inc. Drexler* (1999) 72 Cal.App.4th 693.) The court finds that the prevailing rate in the Riverside area for this type of work is \$550 per hour. In addition, the court agrees with Respondent that the total hours spent on this matter (54 hours) is excessive. The court disallows 6.8 hours for work that is secretarial in nature, was unnecessary, or involved the filing or processing of documents. The 5.3 hours spent on the Reply brief (3/25/26) will be reduced by 2.1 hours. The time expended on the motion for attorney's fees and opposition to motion to tax costs (20.1 hours) is also excessive and will be reduced by 5.4 hours. The court awards Petitioner \$21,835 in attorney's fees. (54hrs – 6.8hrs – 2.1hrs – 5.4hrs = 39.7hrs @ \$550/hr.). No multiplier is warranted.